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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, August 3, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Ahmed v. Lorenzana, 2025-01453224	MOTION TO QUASH SERVICE OF SUMMONS – DENIED AS MOOT After the filing of Defendant Erika Noelani Lorenzana’s Motion to Quash Service of the Summons and Complaint, Plaintiff filed a new proof of service indicating that Defendant was personally served with the summons and complaint on 12/20/25 by a registered process server. (ROA 31.) Filing a proof of service that complies with the applicable statutory standards creates a rebuttable presumption that service was proper. (<i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) Further, a declaration of service by a registered process server establishes a presumption that the facts stated in the declaration are true. (Evid. Code § 647; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) Accordingly, the Court finds that Defendant’s motion, which is based on a prior attempt at service (see ROA 25), is moot. The clerk shall give notice of this ruling.
102		
103	Butler v Equinox, 2024-01444716	MOTION FOR SUMMARY JUDGMENT – DENIED Plaintiff Monique Butler sued Defendants Equinox and David Mounce for negligence and premises liability, based on an incident where Plaintiff slipped and fell in the Equinox spa after allegedly seeing a cockroach. Defendants move for summary judgment based on the release allegedly signed by Plaintiff. Defendants did not allege release as an affirmative defense in their answer to Plaintiff’s complaint. (ROA

#16) A release is an affirmative defense. “The defendant bears the burden of raising the defense and establishing the validity of a release *as applied to the case at hand*.” (*Eriksson v. Nunnink* (2011) 191 Cal.App.4th 826, 856.) Having failed to allege this as an affirmative defense, it cannot be a basis for summary judgment.

Even if the affirmative defense of release was properly before the court, the court would find Plaintiff has established the existence of a disputed issue of material fact. Plaintiff argues that Defendants failed to meet their threshold burden of establishing that Plaintiff signed any waiver. First, Plaintiff testified that the “signature” on the Membership Agreement is not hers. (PUMF # 8, PCOE, Ex. 2, Plaintiff Depo at pp. 22:3–24:23.) Further, she testified that she does not recall ever signing the Membership Agreement. (PUMF # 9.) When asked “you’re saying that this is not a membership that you signed?”, Plaintiff responded, “So I don’t recall the form at all, because that’s not a signature and that’s not how I would write my name. So if I did sign an agreement, I would have to see my signature.” (Ex. 2, Plaintiff Depo at p. 24:20-24.) Indeed, the purported “signature” is nothing more than Plaintiff’s name typed onto the form, and it bears no date, leaving Defendants unable to establish even when she would have purportedly signed the document.

Further, the typed entry is irreconcilable with Equinox’s own signing procedures: the PMQ testified that a signature captured on an iPad “would be a wet signature,” drawn with a finger or stylus, not typed text. (PUMF # 12, PCOE, Ex. 5, Equinox PMQ Depo at pp. 186:1–7; 186:19–23.) No evidence was presented as to what kind of device was used to capture the signature (whether by Ipad, desktop, etc.). Declarant Mounce simply states, the signature was obtained from IP

Adress 10.200.4.109. (Decl. of Mounce ¶5.)

Further, the Membership Agreement submitted as Ex. 2 has a start date of 12/19/2022 and an end date of 12/19/2023. The incident here occurred on May 26, 2024. Defendants offer no evidence regarding a new agreement or an extension of the existing agreement

		The court denies the request to construe the motion for summary judgment of the entire complaint as a motion for judgment on the pleadings of a single cause of action on the ground the two causes of action are duplicative. The court need not rule on Plaintiff's objections to Defendants' evidence. Plaintiff to give notice.
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104	Chan v. Blue Ray Aquatics, 2025-01524694	MOTION TO APPEAR PRO HAC VICE – DENIED WITHOUT PREJUDICE The unopposed application of attorney David A. DuBois to appear pro hac vice on behalf of Defendant Blue Ray Aquatics, LLC is DENIED WITHOUT PREJUDICE. Moving Attorney met the requirements of California Rules of Court, rule 9.40 <u>except</u> that Moving Attorney did not: (1) state his residence pursuant to rule 9.40(d)(1), (2) establish proper service on the state Bar of California pursuant to rule 9.40(c)(1), and (3) state that he is not "[r]egularly engaged in substantial business, professional, or other activities in the State of California" pursuant to 9.40(a)(1), (a)(2), and (a)(3). The Court notes that Counsel need not provide his exact residence address but he must identify the state of his legal residence. This information is not provided in counsel's declaration. Moving attorney to give notice.
105	Dodds-Tsang v. Garden Grove Post Acute, 2025-01536667	MOTION TO COMPEL ARBITRATION – DENIED Plaintiff Yvette Dodds-Tsang sued Defendant Garden Grove Post Acute LLC ("Defendant") for elder abuse, willful misconduct, and medical malpractice/wrongful death in connection with the death of Plaintiff's mother, Ha Tu. All of Plaintiff's claims are asserted as survival

causes of action which Plaintiff is bringing as a successor in interest to her deceased mother. Defendant moves to compel arbitration for all claims asserted against it and stay the case pending arbitration pursuant to “the binding Arbitration Agreement executed in connection with Ha Tu’s admission to the facility on or about April 8, 2025.”

Plaintiff Yvette Dodds-Tsang (“Plaintiff”) opposes the motion.

Pursuant to the holding in *Hearden v. Windsor Redding Care Center, LLC* (2024) 103 Cal.App.5th 1010, the Court finds that Defendant has not carried its burden to establish that the arbitration agreement is enforceable against Decedent Ha Tu and her representatives, agents, executors, family members, successors in interests and heir.

The causes of action asserted in the Complaint belong to Decedent Ha Tu. Plaintiff does not bring these causes of action in her individual capacity; rather, Plaintiff only brings these causes of action as successor in interest to decedent Ha Tu. As such, the Court is not persuaded the Plaintiff’s agreement to arbitrate in her individual capacity holds any significance since the only causes of action at issue are those that belong to the decedent. The decedent never agreed to arbitrate claims that belong to her and therefore caselaw establishes that decedent’s representatives, agents, executors, family members, successors in interests and heir shall not be bound to arbitrate claims that belong to the decedent.

Defendant shall file a responsive pleading within 20 days after Plaintiff serves notice of this ruling.

The order to show cause is discharged.

The case management conference is continued to October 12, 2026, at 1:30 p.m. in Department N14.

Plaintiff to give notice.

106	Fitch v. Krietenberg, 2024-01449068	MOTION FOR SUMMARY JUDGMENT – DENIED MOTION FOR SUMMARY ADJUDICATION – GRANTED IN PART AND DENIED IN PART Defendants Arthur Kreitenberg (“Arthur”), Melissa Kreitenberg (“Melissa”) and Elliot Kreitenberg (“Elliot”) (collectively, “Defendants”) move for summary judgment or, in the alternative, adjudication of issues as to Plaintiffs Ian Fitch (“Ian”) and Marie Fitch’s (“Marie”) (together, “Plaintiffs”) Complaint. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) The Complaint asserts causes of action by both Plaintiffs against all Defendants for (1) gross negligence; (2) negligence per se; (3) strict liability based on common law; (4) strict liability based on dog bite statute; (5) Negligent infliction of emotional distress; (6) private nuisance; and (7) public nuisance. The undisputed facts are that on July 7, 2023, Marie Fitch was walking two dogs on the public sidewalk in front of 12012 Silver Fox Road, which is owned and resided in by Arthur and Melissa. (UF 1, 11.) A chow chow dog named FJ approached and “clamped down” on the hip of one of Marie’s dogs. (UF 2.) Marie was not bitten. (UF 4.) Ian was not present at the time of the incident. (UF 6.) FJ’s owner is Elliot, who was visiting his parents’ home at the time. (UF 6-7.) FJ had escaped through a side gate on the property. (UF 9.)
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First Cause of Action for Negligence/Gross Negligence

The first cause of action is styled as a claim for “gross negligence.” Defendants are correct in arguing that gross negligence is not a separate cause of action. “Gross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages.” (*Rosencrans v. Dover Images, Ltd.* (2011) 192 Cal.App.4th 1072, 1082.) “However, to set forth a claim for ‘gross negligence’ the plaintiff must allege extreme conduct on the part of the defendant,” in that the conduct alleged “must rise to the level of ‘either a ‘ ‘want of even scant care’ ’ or ‘ ‘an extreme departure from the ordinary standard of conduct.’ ” (*Ibid.*)

Defendants contend that gross negligence is not an independent cause of action but, rather, a theory of liability relevant only to punitive damages. The authorities cited by Defendants in support of this proposition illustrate that the distinction between gross negligence and ordinary negligence is only relevant in limited circumstances, such as where a release is involved. (See, e.g., *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 781 (“[W]ith the advent of comparative fault, the need to categorize misconduct into degrees has been ‘diminished.’ . . . the abrogation of gross negligence as a general matter, nevertheless may require that the law continue to recognize gross negligence in the context of ‘anticipatory releases and exculpatory clauses.’ ” (internal citations omitted).) This is not relevant here.

However, the complaint states a cause of action for negligence, and Defendants have not met their burden of demonstrating that Plaintiffs cannot establish an element of negligence (i.e., breach, causation or damages). Summary adjudication is DENIED as to the first cause of action.

Request for Punitive Damages as to First Cause of Action for “Gross Negligence”

Plaintiffs’ first cause of action for “gross negligence” contains a request for punitive damages.

Defendants contend that Plaintiffs cannot establish the requisite necessary mental state to show that Defendants acted with malice, oppression, or fraud, which is the standard for punitive damages set forth in Civil Code §3294. The Complaint alleges that Defendants acted with malice. (Compl. ¶¶ 103-109, 114.) Malice is defined by Civil Code §3294(c)(1) as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.”

Here, there are triable issues of fact based upon which a jury could conclude that Defendants’ behavior amounted to malice. Plaintiffs have submitted evidence that prior to the date of the incident, one of Elliot’s chow chows had bitten another dog, and that Elliot decided to muzzle FJ based in part on “FJ’s past incidents in 2020.” (Elliot Kreitenberg Depo. at 29:6-8; 34:13-23.) These incidents occurred at Melissa and Arthur’s property.

A trier of fact could find that Defendants acted with willful and conscious disregard of the rights or safety of others by failing to take appropriate measures to keep FJ confined within the property.

Accordingly, summary adjudication is DENIED as to the issue of punitive damages.

Second Cause of Action for Negligence Per Se and
Fourth Cause of Action for Strict Liability Under CCP
§3342

“Under Evidence Code section 669, negligence is presumed where the following elements are met: (1) the defendant violated a statute, (2) the violation proximately caused injury to a person or property, (3) the injury resulted from an occurrence of a type the statute was designed to prevent, and (4) the person suffering injury was one of the class of persons for whose protection the statute was adopted.” (*Drury v. Ryan* (2025) 109 Cal.App.5th 1102, 1109.) This is commonly known as negligence per se.

Here, the Complaint alleges that the injuries suffered were of the type that Civil Code section 3342 was

designed to prevent. However, section 3342 specifically provides that “[t]he owner of any dog is liable for the damages suffered *by any person who is bitten by the dog* while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner’s knowledge of such viciousness.” (CCP §3342(a) (emphasis added).) The parties do not dispute that neither Marie nor Ian was bitten by FJ. (UF 5, 6.)

Accordingly, Plaintiffs cannot demonstrate liability based directly on § 3342 or in the form of negligence per se based on a violation of §3342.

Summary adjudication is GRANTED as to the second and fourth causes of action.

Third Cause of Action for Strict Liability Based on Common Law

“California has long followed the common law rule of strict liability for harm done by a domestic animal with known vicious or dangerous propensities abnormal to its class.” (*Drake v. Dean* (1993) 15 Cal.App.4th 915, 921.) The question of whether a domestic animal is vicious or dangerous is ordinarily a factual one for the jury. (*Heath v. Fruzia* (1942) 50 Cal.App.2d 598, 601.)

Here, as discussed above in connection with punitive damages, Plaintiffs have presented evidence of prior incidents involving FJ. Thus, Plaintiffs have raised triable issues of fact as to whether FJ could be considered vicious or dangerous. Each of the incidents occurred at Arthur and Melissa’s property, and Defendants have presented no evidence that Arthur and Melissa could not be considered the keepers of FJ, who was apparently a frequent visitor to their property, albeit owned by their son, Elliot. (See (*Hillman v. Garcia-Ruby* (1955) 44 Cal.2d 625, 626 (“The gist of the action is not the manner of keeping the vicious animal, but the keeping him at all with knowledge of the vicious propensities.”).)

Summary adjudication as to the third cause of action is DENIED.

Fifth Cause of Action for Negligent Infliction of Emotional Distress

Citing *McMahon v. Craig* and *Plotnik v. Meihaus*, Defendants contend that California courts do not allow emotional distress damages for claims of negligence involving harm to pets. (*McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1512–13; *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1606–07.) Plaintiffs do not provide any authority or argument to dispute this contention.

Accordingly, summary adjudication is GRANTED as to the fifth cause of action.

Sixth Cause of Action for Private Nuisance

“[T]he essence of a private nuisance is its interference with the use and enjoyment of land. The activity in issue must ‘disturb or prevent the comfortable enjoyment of property,’ such as smoke from an asphalt mixing plant, noise and odors from the operation of a refreshment stand, or the noise and vibration of machinery.” (*Oliver v. AT&T Wireless Services* (1999) 76 Cal.App.4th 521, 534, internal citations omitted.)

As Defendants point out, Plaintiffs do not plead any interference with the use and enjoyment of their real property. Plaintiffs offer no reasoned argument in opposition to Defendants’ contention.

Summary adjudication is GRANTED as to the sixth cause of action.

Seventh Cause of Action for Public Nuisance

“A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code § 3480.)

The facts alleged in the Complaint give no indication that the incident affected the community or neighborhood or any considerable number of persons,

and Plaintiffs do not deny that they have no evidence which would support such a finding.

Summary adjudication is GRANTED as to the seventh cause of action.

Damages

Defendants finally request that the Court adjudicate that Plaintiffs' damages are limited to property loss. However, as set forth above, the Court finds that Plaintiffs have raised triable issues of fact as to punitive damages.

Accordingly, Defendants' request for adjudication as to the issue of damages is DENIED.

Objections

Plaintiffs' objections to Defendants' evidence are OVERRULED for failure to comply with CRC 3.1354(b). Because Plaintiffs did not identify the specific material being objected to by page and line number, and by quoting the specific material, the Court is unable to ascertain exactly which portions of the materials are purportedly objectionable.

Defendants' Objections No. 2 to the Linda Kovanda report and No. 3 to the Dottie Simpson/Molly report are SUSTAINED on the grounds of lack of foundation and lack of authentication. Objection No. 5 regarding Plaintiffs' characterization of the March 28, 2022 OC Animal Care letter is OVERRULED. Objections No. 6-12 are OVERRULED for failure to comply with CRC 3.1354(b) and/or because the objections improperly object to statements made in Plaintiffs' separate statement rather than to the underlying evidence.

The Court declines to rule on the remainder of the objections as immaterial to the disposition of this motion.

In summary, the motion for summary adjudication is GRANTED as to the second, fourth, fifth, sixth, and seventh causes of action, and DENIED as to the first and third causes of action. Defendants to give notice.

107	Grant v. Bank of America, 2026-01560009	DEMURRER – SUSTAINED WITH LEAVE TO AMEND The present complaint appears to be the fourth complaint filed by Plaintiffs Gavin and Michelle Grant to avoid nonjudicial foreclosure on their home. This court will take judicial notice of the court’s records in Gavin Grant v. Bank of America, N.A. and Clear Recon, 2017-00898495; Gavin Grant v. Bank of America, N.A. and Clear Recon, 2018-00993609; Gavin & Michelle Grant v. Bank of America, N.A., et al 2023-01332810. (Evid Code, § 452, subd. (d)(1); Scott v. JP Morgan Chase Bank, N.A. (2013) 214 Cal.App.4th 743, 752 [court may take judicial notice of its own files on demurrer on its own motion].) Each of those complaints was ultimately dismissed, and the orders of dismissal were affirmed on appeal. In the present case, Plaintiffs allege Bank of America divested itself of interest in the loan on their property. Plaintiffs also allege Bank of America’s substitution of Clear Recon as trustee was ineffective because Bank of America had no interest and no right to change the trustee. Plaintiffs also allege the notice of trustee’s sale by Clear Recon on February 20, 2026 is a new independent wrongful act (Complaint, ¶9) and therefore the final orders of dismissal in the previous cases does not bar the current complaint. However, the 2026 notice of trustee’s sale can only be a new wrongful act if Clear Recon was not properly acting as the trustee. And Plaintiffs can only assert this in the present case if they could not have done so in one of the earlier cases. Plaintiffs do not allege when they learned about Bank of America’s divestiture of its interest. The complaint alleges Plaintiffs discovered Bank of America’s internal accounting records in 2022 (¶20), and they “did not discover the chain of title until years later.” (¶53) Plaintiffs also attach to their complaint the declaration of Esquivel which raises the issue of the assignment of the Deed of Trust to the trust claiming interest which cut off Bank of America’s interest. (See also amended complaint in 2023-01332810, ¶¶36-39) The court’s tentative ruling as to Clear Recon’s demurrer is to sustain the demurrer with leave to amend all causes of action. In addition to addressing the specific issues raised by the demurrer, Plaintiff must also allege when and how they
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		learned about Bank of America's alleged divestiture of its interest.
108	Hamidi v. Manheim Investment, 2020-01145159	MOTION FOR RECONSIDERATION – TENTATIVE POSTED PREVIOUSLY ORDER TO SHOW CAUSE – APPEARANCES REQUIRED
109		
110	Mood v. City of Newport Beach, 2023-01332356	MOTION TO SET ASIDE/VACATE DISMISSAL – DENIED Plaintiff Ivin Mood's motion to set aside the dismissal of this action and for reconsideration is DENIED for the reasons set forth below. On February 4, 2026, Plaintiff failed to appear for a Status Conference and the Court discharged the Status Conference and set an Order to Show Cause re: Why the Case Should Not Be Dismissed for Plaintiff's Failure to Appear for April 6, 2026 at 1:30 p.m. (ROA 370.) Plaintiff failed to appear on April 6 and the Court ordered the action dismissed with prejudice. (ROA 390.) Plaintiff seeks an order setting aside the dismissal or reconsidering it pursuant to Code of Civil Procedure sections 473(b) and 1008(b). In the declaration attached to the Motion, Plaintiff asserts that he was surprised when he did not see anyone in the courtroom of Department N14 on April 6 and after waiting outside for five minutes to see if the calendar would be posted outside the courtroom, he entered to ask the Clerk whether the case would be heard. At that time, the Clerk informed Plaintiff that the case had already been called. Section 1008(b) provides, in relevant part: "A party who originally made an application for an order which was

refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Here, the action was not dismissed based on any application for an order made by any party. Rather, it was based on Plaintiff’s failure to appear at an OSC set by the Court. Thus, section 1008(b) does not apply.

Section 473(b) provides, in relevant part: “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.” The law favors disposing of cases on their merits and any doubts concerning section 473 must be resolved in favor of granting relief. (*McClain v. Kissler* (2019) 39 Cal.App.5th 399, 413.)

“The concept of ‘excusable,’ . . . is not synonymous with a get-out-of-jail-free card for parties who later come to regret past inaction or sitting on their rights. ‘ “ The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. [Citations.] It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. [Citation.] Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs. . . . The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded.’ ” ’ [Citation.]” (*McClain*, 39 Cal.App.5th at pp. 414-415.)

		Here, Plaintiff was aware of the April 6 hearing and, as with other hearings in this matter on March 23, 2026, February 4, 2026, and November 17, 2025, he failed to appear. His own declaration establishes that he found the correct department without issue on the date of the hearing and the only reason the case was dismissed was his failure to enter the department and appear when the case was called. This inadvertence is not excusable or reasonable. Thus, the Court finds that relief under section 473(b) is unwarranted. In light of the above, the motion is DENIED. Court orders Clerk to give notice.
111	Pass v. Oakmont Management Group, 2026-01564998	MOTION FOR PREFERENCE – GRANTED Code of Civil Procedure section 36(a) permits a party who is over 70 years of age to petition the court for trial preference, which the court <i>must</i> grant if it makes both of the following findings: (1) The party has a substantial interest in the action as a whole; and (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation. Section 36 “was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted.” (<i>Looney v. Superior Court</i> (1993) 16 Cal.App.4th 521, 532.) Plaintiff Ella Pass moves for Trial Preference under section 36(a). Plaintiff has a substantial interest in this action as she is the sole plaintiff. Plaintiff is currently 94 years old. (Decl. of Ella Pass, ¶ 2.) Plaintiff submits the declaration of her counsel, who details that Plaintiff suffered serious orthopedic injuries, endured two hip surgeries and a 23-day hospitalization marked by serious complications, and now depends on around-the-clock care with a statistical life expectancy of roughly 3.63 years. (Barnett Decl., ¶¶ 6–9.) The declaration complies with CCP §36.5 and the Court finds that the

		health of Plaintiff is such that preference is necessary to prevent prejudicing her interest in the litigation. While Defendants oppose the motion, their opposition is based on the portion of the statute involving discretionary preference. (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 533–534 [clear-and-convincing-evidence standard applicable to discretionary preference under section 36(d) does not apply to a motion under section 36(a)]; <i>id.</i> at p. 534 [section 36(a) does not require proof of death, incapacity, or likely unavailability for trial].) If the court finds that a party meets the requirements of section 36(a), the court cannot balance conflicting interests of opposing litigants. (<i>Fox v. Superior Court, supra</i>, 21 Cal.App.5th at p. 535 [holding “preference must be granted” and “[n]o weighing of interests is involved” where the moving party meets the standard].) If the motion is granted, trial must be set within 120 days after the motion is granted. (Code Civ. Proc., § 36(f).) Defendants’ objections to the Barnett declaration are OVERRULED. The Court finds the declaration complies with CCP § 36.5. The parties are to appear at the hearing and be prepared to select a trial date within 120 days. Plaintiff’s counsel shall be prepared to provide a date for Plaintiff’s deposition and/or independent medical examination to occur within the next 30 days.
112	Security National Ins. Co. v. OC Services	MOTION FOR ENTRY OF JUDGMENT – NO TENTATIVE RULING Parties previously advised the court they were working on a settlement agreement.

113	Yu v. Universal Waste Systems, Inc., 2026-10548728	DEMURRERS TO AMENDED COMPLAINT – SUSTAINED WITH LEAVE TO AMEND MOTION TO STRIKE – GRANTED On February 27, 2026, Plaintiff Shihu Yu, proceeding <i>in pro per</i>, filed the operative First Amended Complaint against Defendants WM Collection & Recycling, Inc., BHE Management Corporation, Dedicated Transportation Services, Inc. and DOES 1-20, which contains the following causes of action: (1) negligence pursuant to Civil Code section 1714(a), (2) violation of Unruh Civil Rights Act, Civil Code section 51, (3) wrongful towing from disabled space pursuant to Vehicle Code sections 22658 and 22511.8, and (4) conversion pursuant to Civil Code sections 3336 and 3337. (ROA 10.) Defendant Dedicated Transportation Services, Inc. demurs to the entire complaint for failure to state facts sufficient to constitute a cause of action and uncertainty. (ROA 24.) Defendant BHE Management Corporation also demurs all causes of action alleged in the complaint and further moves to strike Plaintiff’s claim for punitive damages. (ROAs 32.) Plaintiff failed to oppose the motion. Based on the non-opposition, the Court may “deem plaintiff[] to have abandoned the issues” or “claims” addressed in the Demurrers and Motion to Strike. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants’ arguments presented in the Demurrers and Motions to Strike. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, <i>as modified</i> (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)
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		In addition, the Court notes that the allegations in the First Amended Complaint are generally uncertain. In particular, the First Amended Complaint fails to “separately state” each cause of action alleged by “number” and “nature” as required by the California Rules of Court. (Cal. Rules of Court, rule 2.112 and Code Civ. Proc., § 425.10.) Moreover, while the First Amended Complaint contains facts, it does not contain a “statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a).) The Court and Defendant must be able to discern which facts are alleged in support which causes of action. Therefore, the Demurrers are SUSTAINED WITH LEAVE TO AMEND and the Motion to Strike is GRANTED WITH LEAVE TO AMEND. Plaintiff shall file a second amended complaint within 20 days of the date of this order. Plaintiff’s motion for leave to amend, scheduled for 08/24/2026, is deemed moot and ordered off calendar. The case management conference scheduled for 08/10/2026 is continued to 10/12/2026 at 1:30 p.m. Defendants to give notice.
114		